

25VECV04520 25VECV04520

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Case Number: 25VECV04520 Hearing Date: July 29, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MINAS MICHEAL MINASYAN,

Plaintiff,

vs.

VOLKSWAGEN
GROUP OF AMERICA, INC., AND DOES 1-100, INCLUSIVE,

Defendant.

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CASE NO.: 25VECV04520

ORDER

GRANTING IN PART PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS
FOR PRODUCTION OF DOCUMENTS, SET ONE

I.

BACKGROUND

Plaintiff Minas Micheal

Minasyan ("Plaintiff") brings this lemon law action against Defendant
Volkswagen Group of America, Inc. ("Defendant"). Plaintiff alleges the 2022
Volkswagen Taos SE ("Subject Vehicle") he leased contained a manufacturer defect
and was unable to be conformed to warranty.

Plaintiff moves to compel

further responses to his Requests for Production of Documents, Set One, Nos. 5,
7-10, 15-16, 20, 30, and 36-38.

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II.

PROCEDURAL

HISTORY

On August 12, 2026, Plaintiff filed a Complaint alleging (1) Breach of Implied Warranty; (2) Breach of Express Warranty; (3) Violation of The Song Beverly Consumer Warranty Act; and (4) Violation of California Civil Code section 1793.2(b).

On September 15, 2025, Defendant filed an Answer.

On May 14, 2026, the Court granted the parties' stipulation and protective order.

On July 1, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Production of Documents, Set One.

On July 16, 2026, Plaintiff filed an Opposition.

On July 22, 2026, Plaintiff filed a Reply.

III.

LEGAL STANDARD

A.

Request
for Production of Documents

In responding to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).) [1] If any objections are made, they must: (1) "[i]dentify with particularity any document ... falling within any category of item in the demand to which an objection is being made"; and (2) "[s]et forth clearly the extent of, and the specific ground for, the objection." (Id. at § 2031.240(b).) A statement that the responding party is unable to comply

with a particular demand “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand”; “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”;² and “shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id. at § 2031.230.)³

A party who believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See id. at §§ 2031.310(a)-(b)(1).)

IV.

MEET AND CONFER

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable

and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

Plaintiff's

counsel attests he telephonically met and conferred with Defendant's counsel on April 9, 2026, and May 5, 2026. (See Declaration of Erik J. Khorovsky filed July 1, 2026 ("Khorovsky Decl."), ¶¶ 9, 13, Ex. 8.) Plaintiff's counsel acknowledges Defendant's counsel also called him on June 25, 2026, and followed up by email with an intent "to further obfuscate the matter." (See id., ¶ 21.)

Defendant's

counsel argues that after their meet and confer by telephone, Defendant served further responses and outstanding responsive documents on May 28, 2026, and June 23, 2026. (See Declaration of Blair Kim filed July 16, 2026 ("Kim Decl."), ¶¶ 10-11, Exs. G-H.) Defendant's counsel argues Plaintiff's counsel thereafter claimed the responses were deficient and ignored Defendant's request to meet and confer on June 25, 2026. (See id., ¶¶ 13-16.) Defendant's counsel also argues Plaintiff's meet and confer letter and related communications were silent as to RFP No. 20, and thus, the Motion should be denied as to this request. (See Opp. at 11:3-7.)

In reply,

Plaintiff argues it has diligently attempted to resolve the discovery dispute, beginning with an April 15, 2026, telephonic meet and confer. (See Reply at 3:15-16.) Plaintiff argues he and Defendant's counsel disagreed that the June 24, 2026, supplemental production was deficient. (See id., at 5:10-11.)

The Court

finds Plaintiff did not comply with its obligation to meet and confer in good faith. Plaintiff's last meet and confer efforts occurred before Defendant served further responses and documents. Plaintiff's counsel even acknowledges Defendant's counsel called him but reasoned this was Defendant's attempt to obstruct and delay. The Court finds this conduct insufficient as Plaintiff did not attempt to informally resolve the deficiencies he found in Defendant's further responses and production before filing this Motion. Counsel are warned that while the Court is still addressing the substance of the instant Motion, should they fail to properly meet and confer as required prior to filing any other motion, the Court will likely deny it outright for failing to meet and confer.

V.

ANALYSIS

A.

Plaintiff's Motion RFPs is Granted in
Part.

1.

No. 5

"All

DOCUMENTS concerning field reports, dealer contacts, warranty claims, customer complaints, claims, reported failures regarding ENGINE DEFECT in VOLKSWAGEN VEHICLES REACQUIRED in California, including any DOCUMENTS concerning YOUR response to each field report, customer complaint, reported failure, and warranty claim. [This request shall be understood to also include communications and/or reports, which Defendant is required to maintained pursuant to the Code of Federal Regulations, Title 49, Section 579.21. ..." (Sep. Stmt. No. 5.)

Defendant asserts

the following objections including burdensome, overbroad, vague, ambiguous (e.g., the phrase "ENGINE DEFECT"), not reasonably calculated to lead to the discovery of admissible evidence, irrelevant, trade secret privilege, and attorney client and work product privileges. (See id.)

Plaintiff

argues Defendant has failed to produce CFR records for similar year, make model vehicles matching the combined coded defect definitions of "engine and engine cooling" and "fuel system", Defendant produced warranty claims and customer complaints unrelated to Plaintiff's repair history, and Defendant failed to search for part/product numbers. (See id.) Plaintiff also argues Defendant's boilerplate objections are meritless. (See id.)

Defendant

argues Plaintiff fails to show good cause and that its objections are proper. Defendant contends its ambiguity objection is proper because Plaintiff's request relies on undefined terms including "Doc-It," "Volkswagen Technician Helpline," "Technical Assistance Center," "Field Report," "reported failure," and "Volkswagen Technical Assistance." (See Def.'s Sep. Stmt. Nos. 5, 7-10, 15-16, 20, 30, 36-38.) Defendant argues its overbreadth objection is proper because this request seeks multi-year information regarding other customer complaints for other 2022 Volkswagen Taos vehicles. (See id.) Defendant

argues its confidentiality and trade secret objections are justified because the RFPs at issue target information that is not publicly available. (See *id.*) Defendants also argue its attorney client and work product privilege objections are proper because these RFPs seek documentation that would reveal counsel's mental impressions, litigation strategy, and communications with the client. (See *id.*) Finally, Defendant argues the Motion should be denied as moot as Defendant has produced responsive documents to every RFP. (See *id.*)

The Court

finds further response to No. 5 is warranted. Plaintiff has shown good cause for further response and production of the requested documents regarding defects alleged in Plaintiff's complaint in vehicles for the same year, make, and model of the subject vehicle. (See also Lemon Law Addendum No. 2.) The Court overrules Defendant's meritless objections. This request does not implicate the attorney-client or work product privileges and Plaintiff provided a list of definitions for the terms Defendant claims are vague or ambiguous. (See Khorovsky Decl., Ex. 1 at 3.) Further, the Court notes the parties have a protective order which resolves Defendant's confidentiality and trade secret objections.

The Court

GRANTS Plaintiff's Motion RFPs as to No. 5.

2.

No. 7

"All SUBJECT

VEHICLE SAGA DOCUMENTS." (Sep Stmt. No. 7.)

Defendant's initial

response asserts the following objections including failure to reasonably particularize each category of item, ambiguous (e.g., the phrase "SAGA DOCUMENTS"), not reasonably calculated to lead to the discovery of admissible evidence, irrelevant, confidential, and attorney client and work product privileges. (See *id.*) Defendant's further response reasserts its objections and adds "Subject to and without waiving the foregoing objections and interpreting the request as excluding privileged communications between VWGoA and its attorneys, all responsive documents in the demanded category that are in the possession, custody, or control of VWGoA, and to which no objection has been made will be included in the production."

Plaintiff

argues the response is deficient because Defendant did not verify its further response and Defendant produced only some responsive documents. (See *id.*)

The Court

incorporates Defendant's argument as set forth under No. 5.

The Court

finds further response to No. 7 is warranted. As Defendant's further response is unverified, the Court focuses on the initial response and overrules Defendant's meritless objections. If Defendant asserts a statement of compliance, Defendant is expected to permit inspection in accordance with its agreement to comply with the inspection demand. (See Code Civ. Proc. §§ 2031.210(a), 2031.320.)

The Court

GRANTS Plaintiff's Motion RFPs as to No. 7.

3.

No. 8

"All SUBJECT

VEHICLE DOCUMENTS in YOUR Warranty Information and Service Evaluation ("WISE") database." (Sep. Stmt. No. 8.)

Defendant's

initial and further responses assert the following objections: overbroad, vague, ambiguous, the request seeks premature disclosure of expert information. Defendant's responses further state, "Subject to and without waiving the foregoing objections and interpreting the request as excluding privileged communications between VWGoA and its attorneys, all responsive documents in the demanded category that are in VWGoA's possession, custody, or control and to which no objection has been made will be included in the production..." Defendant's further response adds, "VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (*Id.*)

Plaintiff

argues Defendant did not verify its further responses. Plaintiff also argues the initial and further responses referred to the production of unrelated documents

and indicated that some documents are being withheld based on unsubstantiated privilege objections. (See *id.*) Plaintiff also argues the Subject Vehicle documents contained in Defendant's WISE database are the warranty claim request documents and thus relevant to this action. (See *id.*)

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court

finds further response to No. 8 is warranted. As Defendant's further response is unverified, the Court focuses on the initial response and overrules Defendant's meritless objections. Accordingly, if Defendant asserts a statement of compliance under Code of Civil Procedure § 2031.220, it cannot respond it will withhold responsive documents based on objections. As stated above, Defendant is expected to produce responsive documents in accordance with its response that it will comply. (See Code Civ. Proc. § 2031.320.)

The Court

GRANTS Plaintiff's Motion as to No. 8.

4.

No. 9-10

"All

DOCUMENTS in YOUR ELSA database for the SUBJECT VEHICLE. (ELSA shall refer to: ELSA, ELSAwin, ELSAweb, ELSAPro, and ELSA2GO)" (Sep. Stmt. No. 9.)

"ALL SUBJECT

VEHICLE Doc-It DOCUMENTS." (*Id.*, No. 10.)

Defendant's

initial and further responses to Nos. 9-10 assert the following objections: overbroad, vague and ambiguous, not reasonably calculated to lead to the discovery of admissible evidence, irrelevant, confidentiality, and attorney-client privilege. (See *id.*, Nos. 9-10.) Defendant's further response to Nos. 9-10 adds, "Subject to and without waiving the foregoing objections and interpreting the request as excluding privileged communications between VWGoA and its attorneys, all responsive documents in the demanded category that are in the possession, custody, or control of VWGoA, and to which no objection has been made will be included in the production." (*Id.*)

Plaintiff argues

the further responses are not verified and Defendant did not produce requested documents. (See *id.*, Nos. 9-10.) Plaintiff argues ELSA documents are Defendant's vehicle-specific records relevant to the Subject Vehicle and its repair presentations. (See *id.*, No. 9.) Plaintiff argues Doc-It documents are contained within the WISE database, as requested in No. 8, which are relevant to Plaintiff's warranty claims. (See *id.*, No. 10.)

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court

finds further responses to Nos. 9-10 are warranted as Defendant's further responses are unverified and the Court overrules Defendant's meritless objections asserted in its initial response.

The Court

GRANTS Plaintiff's Motion RFPs Nos. 9-10.

5.

No. 15

"All SUBJECT

VEHICLE Technical Assistance Center ("TAC") DOCUMENTS." (Sep. Stmt. No. 15.)

Defendant's

initial and further responses assert the following objections: fails to reasonably particularize each category of item, overbroad, vague and ambiguous, not reasonably calculated to lead to the discovery of admissible evidence, irrelevant, confidentiality, and attorney-client privilege. (See *id.*) Defendant's initial response states at the end, "Please see the repair orders and TACline contact logs (Exhibit C)." Defendant's further response states at the end, "all responsive documents in the demanded category that are in VWGoA's possession, custody, or control and to which no objection has been made will be included in the production. Subject to and without waiving the foregoing objections, please see the repair orders and TACline contact logs (Exhibit C). VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (*Id.*)

Plaintiff

argues Defendant failed to serve a verified further response. Plaintiff also contends that Defendant's further response refers to a summary of the whole and indicates that Subject Vehicle documents are being withheld based on unsubstantiated privilege objections. (See *id.*)

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court finds

further response to No. 15 is warranted as Defendant's further response is unverified and the Court overrules Defendant's meritless objections asserted in its initial response. The substantive portion of Defendant's initial response is otherwise not code compliant. (See Code Civ. Proc. § 2031.210(a).)

The Court

GRANTS Plaintiff's Motion RFPs No. 15.

6.

No. 16

"All

Volkswagen Technical Assistance ("VTA") DOCUMENTS concerning the SUBJECT VEHICLE (including all DOCUMENTS submitted with every VTA ticket)."

Defendant's

initial and further responses assert the following objections: vague, overbroad, irrelevant, ambiguous, confidentiality, and attorney-client privilege. (See *id.*) Defendant's initial response adds, "Please see the repair orders and VTA contact logs (Exhibit C)." Defendant's further response adds, "Subject to and without waiving the foregoing objections, please see the repair orders and VTA contact logs (Exhibit C). VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (*Id.*)

Plaintiff

argues Defendant failed to serve a verified further response. Plaintiff also contends that Defendant's further response refers to a summary of the whole and indicates that Subject Vehicle documents are being withheld based on unsubstantiated privilege objections. (See *id.*)

The Court

incorporates Defendant's argument as set forth under No. 5.

The Court finds

further response to No. 16 is warranted as Defendant's further response is unverified and the Court overrules Defendant's meritless objections asserted in its initial response. The substantive portion of Defendant's initial response is also not code compliant. (See Code Civ. Proc. § 2031.210(a).)

The Court

GRANTS Plaintiff's Motion RFPs No. 16.

7.

No. 20

"All Guided

Fault Finding test plans performed on the SUBJECT VEHICLE." (Sep. Stmt. No. 20.)

Defendant's

response asserts the following objections including: not particularized, vague, overbroad, irrelevant, and confidentiality. (See *id.*) Defendant adds, "Subject to and without waiving the foregoing objections and interpreting the request as excluding privileged communications between VWGoA and its attorneys, all responsive documents in the demanded category that are in VWGoA's possession, custody, or control and to which no objection has been made will be included in the production. Please see the repair orders (Exhibit C) and GFF logs (Exhibit D)." (*Id.*)

Plaintiff

argues Defendant never produced the documents cited in its response and indicates that further responsive documents are being withheld based on unsubstantiated privilege objections. (See *id.*) Plaintiff argues the GFF test plan documents evidence Defendant's computer automated diagnostic and repair process explicitly directing Defendant's repair technicians on the steps to repair issues identified during automated diagnostic processes. (See *id.*)

The Court

incorporates Defendant's argument as set forth under No. 5.

Although the

Court was willing to overlook Plaintiff's counsel's failure to meet and confer fully as to the other Requests at issue here because there was some effort made, since Plaintiff's counsel made no attempt whatsoever to meet and confer after receiving this response, the Court finds no further response is required.

The Court DENIES

Plaintiff's Motion RFPs No. 20.

8.

No. 30

"All warranty

extensions issued, or in the process of being issued for VOLKSWAGEN VEHICLES."

(Sep. Stmt. No. 30.)

Defendant's

response asserts the following objections including vague and ambiguous (e.g., "All warranty extensions"), overbroad, irrelevant, trade secret and confidentiality, attorney-client and work product privileges. (See *id.*)

Plaintiff

argues this request seeks all warranty extensions Defendant offered for similar year, make, model vehicles and is thus relevant to Plaintiff's breach of express warranty claim and Defendant's knowledge of issues present in other similar year, make and model vehicles as the Subject Vehicle.

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court

finds further response to No. 30 is not warranted. The Court finds this request is overbroad and ambiguous. The request is unclear as to what type of warranty extension and whether it seeks warranty extensions issued by the manufacturer or purchased by a consumer. This request is also overbroad as it facially seeks warranty extensions issued due to any reason, instead of seeking extensions issued due to an ENGINE DEFECT. The Court overrules Defendant's remaining objections as meritless.

The Court DENIES

Plaintiff's Motion RFPs as to No. 30.

9.

No. 36

"All

DOCUMENTS relied upon by YOU in support of YOUR contention that YOU are under no obligation to promptly replace or repurchase the SUBJECT VEHICLE." (Sep. Stmt. No. 36.)

Defendant's

initial and further responses assert objections including overbroad, items sought are not reasonably particularized, attorney-client and work product privileges, and premature disclosure of expert information. (See id.)

Defendant's initial and further response adds "Subject to and without waiving the foregoing objections...all responsive documents in the demanded category that are in VWGoA's possession, custody, or control and to which no objection has been made will be included in the production. See the warranty history printout (Exhibit B)...Discovery is ongoing." Defendant's further response adds "VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (Id.)

Plaintiff

argues Defendant failed to verify its further responses, Defendant's responses refer to unproduced documents, and Defendant's response indicated documents are being withheld based on unsubstantiated objections. (See id.) Plaintiff contends this request seeks documents relevant to Defendant's obligations under the Song-Beverly Act.

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court

finds further response to No. 36 is warranted as Defendant's further response is unverified and the Court overrules Defendant's meritless objections asserted in its initial response. If Defendant's further response asserts a statement of compliance under CCP § 2031.220, it cannot respond it will withhold responsive documents based on objections. As stated above, Defendant is expected to produce responsive documents in accordance with its response that it will comply. (See Code Civ. Proc. § 2031.320.)

The Court

GRANTS Plaintiff's Motion RFPs as to No. 36.

10.

No. 37

"All

DOCUMENTS that YOU reviewed or relied upon in denying Plaintiff's repurchase request." (Sep. Stmt. No. 37.)

Defendant's

initial and further responses state the following objections including overbroad, ambiguous, irrelevant, attorney client and work product privileges, trade secret and confidentiality. (See *id.*) Defendant's initial response adds "Subject to and without waiving the foregoing objections, please see customer contact log (Exhibit H)." Defendant's further response adds "VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (*Id.*)

Plaintiff

argues Defendant failed to verify its further responses, Defendant's responses refer to unproduced documents, and Defendant's response indicated documents are being withheld based on unsubstantiated objections. (See *id.*) Plaintiff contends this request seeks documents relevant to Defendant's obligations under the Song-Beverly Act.

The Court

incorporates Defendant's argument as set forth under No. 5.

The Court finds

further response to No. 37 is warranted as Defendant's further response is unverified and the Court overrules Defendant's meritless objections asserted in its initial response. The substantive portion of Defendant's initial response is not code compliant. (See Code Civ. Proc. § 2031.210(a).) As stated above, Defendant is expected to produce responsive documents in accordance with its response that it will comply. (See Code Civ. Proc. § 2031.320.)

The Court

GRANTS Plaintiff's Motion RFPs No. 37.

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11.

No. 38

"All

evaluations, assessments, memoranda, and/or other reports made in connection with Plaintiffs repurchase request." (Sep. Stmt. No. 38.)

Defendant's

initial and further responses assert objections including overbroad, items sought are not reasonably particularized, attorney-client and work product privileges, and premature disclosure of expert information. (See id.)

Defendant's initial response adds "Subject to and without waiving the foregoing objections, after a reasonable and diligent search, to the best information, knowledge, and belief of VWGoA, Plaintiff made pre-litigation request for refund, replacement, or repurchase of the subject vehicle. After evaluation, VWGoA in good faith determined that the repurchase ore placement was not warranted under the circumstances. Nevertheless, VWGoA offered cash settlement. Plaintiff did not accept this offer. Regardless, in the interest of customer satisfaction, VWGoA made a pre-litigation settlement offer to Plaintiff. Please see customer contact log (Exhibit H)." (Id.) Defendant's further response adds "VWGoA confirms that it has not withheld any documents responsive to this request on the basis of privilege." (Id.)

Plaintiff

argues Defendant's further response is not verified. Plaintiff contends Defendant's response refers to unproduced documents and indicates that documents are being withheld based on objections. (See id.)

Defendant

repeated the same argument it made in opposing Request No. 5.

The Court finds

further response to No. 38 is warranted as Defendant's further response is unverified and the Court overrules Defendant's meritless objections asserted in its initial response. The substantive portion of Defendant's initial response is not code compliant. (See Code Civ. Proc. § 2031.210(a).) As stated above, Defendant is expected to produce responsive documents in accordance with

its response that it will comply. (See Code Civ. Proc. § 2031.320.)

The Court

GRANTS Plaintiff's Motion RFPs No. 38.

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VI.

DISCOVERY

SANCTIONS

The court

shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h), 2030.300(d), 2033.290(c).)

Plaintiff

requests discovery sanctions in the amount of \$3,500.00. This total comprises 2 hours to prepare for this Motion, 2 hours to draft this Motion, 1 hour to draft a response, and 1 hour to attend the hearing. (See Khorovsky Decl., ¶ 26.) Plaintiff's counsel's hourly rate is \$350.00. (See *id.*)

Defendant

argues sanctions are not warranted because Plaintiff did not make a good faith attempt to informally resolve the dispute and Defendant made good faith efforts to provide the discovery Plaintiff requested. (See Opp. at 18:4-20.)

The Court declines

Plaintiff's request for discovery sanctions because Plaintiff did not satisfy its meet and confer obligation. Likewise, should Plaintiff file a Motion for Attorney Fees at the conclusion of the case, the Court will be unlikely to award fees in connection with this Motion.

VII.

CONCLUSION

Based on the
foregoing, the Court GRANTS in part Plaintiff's Motion RFPs as to Nos. 5, 7-10,
15-16, and 36-38, and DENIES it as to Nos. 20 and 30.

IT
IS SO ORDERED.

DATED: July 29, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.